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Case Number: 24STCV34021 Hearing Date: July 23, 2026 Dept: 408

Plaintiffs Taran H. Killam and Jacoba F. Smulders' Motion for Attorney's Fees and Costs is GRANTED in part and DENIED in part. Fees and Costs are AWARDED, in favor of Plaintiffs and against Defendant, in the reduced amount of \$17,504.70.

I.

BACKGROUND

On December 24, 2024, Plaintiffs Taran H. Killam and Jacoba F. Smulders ("Plaintiffs") filed a complaint against Defendant FCA US LLC ("Defendant") alleging causes of action for:

1. Breach of Implied Warranty
of Merchantability under the Song-Beverly Warranty Act;
2. Breach of Express Warranty
Obligations under the Song-Beverly Warranty Act; and
3. Violation of Song-Beverly
Warranty Act section 1793.2.

On January 24, 2025, Defendant filed an answer to Plaintiffs' complaint.

On April 22, 2026, Plaintiffs filed a Notice of Settlement of Entire Case.

On May 19, 2026, Plaintiffs filed this Motion for

Attorney's Fees and Costs and a Memorandum of Costs. On July 10, 2026, Defendant filed an opposition. On July 10, 2026, Plaintiffs filed a reply.

II.

LEGAL

STANDARD

A

prevailing party is entitled to recover its attorney's fees when authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5, subd. (a)(10); Civ. Code, § 1717, subd. (a).) "A successful party means a prevailing party, and [a party] may be considered prevailing parties for attorney's fees purposes if they succeed on any significant issue in litigation which achieves some of the benefit the parties sought in bringing suit." (Bowman v. City of Berkeley (2005) 131 Cal.App.4th 173, 178.)

III.

DISCUSSION

1. Parties' Arguments

Plaintiffs

move the court to award \$26,870.45, comprised of \$23,332.50 in attorney's fees, \$1,204.70 in costs, and \$2,333.25 in a 1.1 lodestar multiplier. (Motion, at p. 1; Kohen Decl., ¶ 12, Exhs. 1-2.)

In

opposition, Defendant disputes the reasonableness of the attorney's fees and costs requested based on the simple nature of the action. (Opp., at pp. 1-3.)

2. Authority for Fees & Prevailing Party

a. Legal Standard

Attorneys' fees are allowed as costs when authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5, subd. (a)(10)(B).) In a lemon law action, costs and expenses, including attorney's fees, may be recovered by a prevailing buyer under the Song-Beverly Act. (Civ. Code, § 1794, subd. (d).)

Civil

Code section 1794 provides: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794.)

Thus,

the statute includes a "reasonable attorney's fees" standard. The attorney bears the burden of proof as to "reasonableness" of any fee claim. (Code Civ. Proc., § 1033.5, subd. (c)(5).) This burden requires competent evidence as to the nature and value of the services rendered. (Martino v. Denevi (1986) 182 Cal.App.3d 553, 559.) "Testimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees, even in the absence of detailed time records." (Ibid.)

b. Discussion

On May 21, 2025, the parties reached a settlement agreement in the amount of \$30,000.00, plus attorney's fees and costs. (Motion, at p. 3; Kohen Decl., ¶ 3, Exh. 3.) As such, Plaintiffs are the prevailing party and are entitled to recover their reasonable attorney's fees and costs under Section 1794(d).

3. Method of Calculation for Fees

a. Legal Standard

In

determining a reasonable attorney fee, the trial court begins with the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 36.) The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (Ibid.) These facts include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (Ibid.)

b. Discussion

Considering

that neither party proposes a different method for calculating fees, the court uses the lodestar adjustment method.

4. Reasonableness of the Fees Claimed

a. Reasonableness of the Hourly Rates

i.

Legal

Standard

“The

courts repeatedly have stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom, and this includes the determination of the hourly rate that will be used in the lodestar calculus. In making its calculation, the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied, and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases.” (569 East County Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 437 [citations omitted].)

ii.

Discussion

Plaintiffs’

counsel claims an hourly rate of \$575.00 per hour for Counsel Isaac Kohen and \$375.00 per hour for Counsel Tamara R. Artolozaga (Motion, at pp. 1, 4-5; Kohen Decl., ¶¶ 21, 25, Exh. 1.)

After considering the information provided, the court

finds that the appropriate hourly rate for Counsel Isaac Kohen is \$500.00 per hour and \$200.00 per hour for Counsel Tamara R. Artolozaga consistent with Counsel’s level of experience.

b. Reasonableness of the Number of Hours

i.

Legal

Standard

“Under the lodestar adjustment methodology, the trial court must initially determine the actual time expended and then ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. Factors to be considered include, but are not limited to, the complexity of the case and procedural demands, the attorney skill exhibited and the results achieved. The prevailing party and fee applicant bears the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation and were reasonable in amount. It follows that if the prevailing party fails to meet this burden, and the court finds the time expended or amount charged is not reasonable under the circumstances, then the court must take this into account and award attorney fees in a lesser amount.” (Mikhaeilpoor v. BMW of N. Am., LLC (2020) 48 Cal.App.5th 240, 247 [cleaned up].)

ii.

Discussion

Plaintiffs’

counsel claims that 39.6 hours incurred by Counsel Isaac Kohen and 1.5 hours incurred by Counsel Tamara R. Artolozaga in litigating the instant action. (Motion, at p. 1; Kohen Decl., ¶ 12, Exh. 1.)

The

court notes that Counsel Isaac Kohen requests 4.8 hours for drafting this motion, 2.7 hours for drafting the supporting declaration, and 4.5 hours in anticipation of drafting a reply and attending the hearing. (Kohen Decl., ¶ 12, Exh. 1.) The court will grant 5.0 hours in compensation for Counsel’s time spent in connection with this motion due to its simple nature.

Similarly,

Counsel Tamara R. Artolozaga requests an additional 1.5 hours in anticipation of attending the OSC Re: Dismissal hearing and for unspecified miscellaneous tasks to complete the case. (Ibid.) The court declines to allot any additional time for work not yet performed.

Nevertheless,
the declaration and billing records provided by Plaintiffs' counsel are sufficient to meet the burden of proving the reasonableness of the claimed fees in terms of amounts and tasks. To satisfy this burden, evidence and descriptions of billable tasks must be presented in sufficient detail, enabling the court to evaluate whether the case was overstaffed, the time attorneys spent on specific claims, and the reasonableness of the hours expended. (*Lunada Biomedical v. Nunez* (2014) 230 Cal.App.4th 459, 486-487.)

Plaintiffs'
counsel's fee recovery is based on 32.6 total hours counsel spent litigating this case through the instant motion. (Kohen Decl., ¶ 12, Exh. 1.) The fees incurred are reasonable, as captured in the billing records submitted to this court. Plaintiffs' counsel's billing records reflect the actual time and descriptions of services performed in connection with litigating this case. Although the submission of such detailed time records is not necessary under California law, if submitted, such records "are entitled to credence in the absence of a clear indication the records are erroneous." (*Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 396.)

Accordingly,
the court grants Plaintiffs' requested attorney's fees in the reduced amount of \$16,300.00 comprised of 32.6 hours spent by Counsel Isaac Kohen at the hourly rate established above.

c. Reasonableness of Multiplier

i. Legal Standard

Relevant
factors to determine whether an enhancement is appropriate include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.)

ii. Discussion

Plaintiffs'

requests a multiplier of 1.1 for an additional \$2,333.25 in recovery. (Motion, at pp. 1, 9-11.)

The

court denies Plaintiffs' request for a 1.1 lodestar multiplier. Given the routine work done in this case and the results obtained, a multiplier is not appropriate. The contingent risks, preclusion of other work, skill, and difficulty counsel assert are absorbed by counsel's hourly rates. (*Robertson v. Fleetwood Travel Trailers of California Inc.* (2006) 144 Cal.App.4th 785, 822.) As such, any contingency risk factor is already accounted for in the hourly rates.

5. Reasonableness of the Costs Claimed

Plaintiffs'

requests \$1,204.70 in costs and expenses incurred in litigating this matter. (Motion, at pp. 1, 12; Kohen Decl., ¶ 12, Exh. 2.)

The court notes that as a prevailing party, Plaintiffs can obtain costs pursuant to Civil Code section 1794(d). Moreover, Defendant does not oppose Plaintiffs' costs and expenses. (Opp., at p. 2.) Thus, the court finds that these costs are reasonable and allowable under at least one of the cost statutes.

Accordingly, the court will award \$1,204.70 in costs and expenses.

IV.

CONCLUSION

Plaintiffs Taran H. Killam and Jacoba F. Smulders' Motion for Attorney's Fees and Costs is GRANTED in part and DENIED in part. Fees and Costs are AWARDED, in favor of Plaintiffs and against Defendant, in the reduced amount of \$17,504.70.